

STATE OF NEW YORK

4725--B

Cal. No. 100

2025-2026 Regular Sessions

IN ASSEMBLY

February 5, 2025

Introduced by M. of A. BURDICK, SCHIAVONI, SIMONE, EPSTEIN, OTIS, ROSENTHAL, LEVENBERG, LUNSFORD, SANTABARBARA -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the environmental conservation law, in relation to prohibiting the use of drilling fluids, brine and flowback water from gas or oil wells, pools, or fields on any highway

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 23-0305 of the environmental conservation law is
2 amended by adding a new subdivision 16 to read as follows:

3 16. The department shall prohibit the use of drilling fluids, brine,
4 and flowback water from gas or oil wells, pools, or fields on any high-
5 way, as defined in subdivision fourteen of section two of the transpor-
6 tation law, for any purpose, including but not limited to use for de-ic-
7 ing, dust suppression or any other use.

8 § 2. This act shall take effect on the one hundred eightieth day after
9 it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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